

**STATE OF MINNESOTA
COUNTY OF ST. LOUIS**

MICHAEL BERNSTEIN,
Petitioner,

vs.

ALYSSA DENHAM, in her official capacity
as City Clerk of the City of Duluth; the CITY
COUNCIL OF THE CITY OF DULUTH; and
the CITY OF DULUTH,
Respondents.

DISTRICT COURT
SIXTH JUDICIAL DISTRICT

Case Type: Other Civil – Mandamus

Court File No. _____

**VERIFIED PETITION FOR A WRIT OF
MANDAMUS AND FOR
DECLARATORY RELIEF
(EXPEDITED)**

Petitioner Michael Bernstein, for his verified petition against Respondents, alleges and states:

INTRODUCTION

1. This case is about the disenfranchisement of more than 4,000 Duluth voters. They signed two petitions to put the future of the former Lester Park Golf Course — some 230 acres of public parkland that has belonged to the people of Duluth for generations, and the 37.5-acre parcel known as Lake 9 — to a vote of the people, as the City Charter allows. The City Clerk certified the Lake 9 petition with 4,049 valid signatures — hundreds more than the twenty percent the Charter requires to send a measure forthwith to a special election — yet processed it under the wrong standard, one that would shelve the vote until November 2027. And on the 230-acre petition, the Clerk’s office mistakenly failed to review more than a thousand legal and valid signatures: approximately 165 of the 662 signature sheets filed were never examined at all. Both errors have since been demonstrated to the City Clerk and the City Attorney’s Office — including by identifying for them the exact sheets that were never reviewed — and they have refused to correct either. The Charter’s explicit deadlines have been missed and its plain commands left unperformed, and every day of further delay pushes the voters’ decision toward a November 2027 election that will come too late — after the City’s own agreements contemplate the very rezoning and conveyance the petitions seek to submit to a vote.

2. This expedited action seeks to establish that two initiative petitions concerning the former Lester Park Golf Course are sufficient under the twenty-percent, special-election standard of Duluth City Charter § 51, and that the City Council's mandatory deadlines to act on them are already running. Petitioner seeks a declaration to that effect and, in the alternative and in aid of it, writs of mandamus compelling the City Clerk to certify the petitions correctly and to complete a count she left unfinished, and compelling the Council to act within the periods § 51 prescribes.
3. Time is of the essence. The measures can reach the voters this cycle only at the November 3, 2026 election; the ballot titles and language must be certified to the St. Louis County Auditor by August 11, 2026 (Minn. Stat. § 205.16, subd. 4); and, as set out below, the Council's deadlines to act fall between July 27 and August 3, 2026. Absent prompt relief, Petitioner and the City's electors will lose the reserved right of initiative for this cycle.

PARTIES, JURISDICTION, AND VENUE

4. Petitioner Michael Bernstein is a registered voter and elector of the City of Duluth, the Director of Our Park, Our Vote, a proposer of both initiative petitions, and a licensed Minnesota attorney (Reg. No. 0401630) appearing on his own behalf. He is beneficially interested. Minn. Stat. § 586.02.
5. Respondent Alyssa Denham is the City Clerk of the City of Duluth, sued in her official capacity; she performs the petition-examination and certification duties of Charter §§ 50–51. Respondent City Council holds the duties of Charter § 51; Respondent City of Duluth is a home rule charter city.
6. This Court has jurisdiction under Minn. Stat. §§ 586.01–586.02 (mandamus), Minn. Stat. ch. 555 (declaratory judgments), Minn. Stat. § 204B.44, and Charter § 50, which provides that compliance "may be enforced by proceedings in the District Court of St. Louis County, at the

suit of any citizen of this city." Venue is proper in St. Louis County, Sixth Judicial District. Minn. Stat. § 542.09.

FACTUAL ALLEGATIONS

7. Two initiative petitions were submitted to the Clerk: **Petition 1**, the "230-Acre Petition," requiring "voter approval before approximately 230 acres of the former Lester Park Golf Course can be rezoned"; and **Petition 2**, the "37.5-Acre (Lake 9) Petition," requiring "rezoning the approximately 37.5-acre parcel commonly known as the Lake 9 parcel by approval of majority of voters." Each petition contains, in its printed text, a request that the ordinance be submitted forthwith to a vote of the people at a special election. Exhibits 1–2.
8. The Clerk's Petition Ordinance Reports of July 8, 2026 state that 18,414 total ballots were cast at the last preceding general municipal election. Twenty percent of 18,414 is 3,682.8; a petition is sufficient for special-election submission under § 51 upon reaching 3,683 valid signatures. Exhibits 3–4.
9. Both petitions were filed on Tuesday, June 23, 2026. Under Charter § 50, incorporated by § 51, the Clerk was required to examine each petition and attach her certificate "within ten (10) days" of filing. The tenth day, July 3, 2026, is a legal holiday (the observed Independence Day, July 4 falling on a Saturday), so under Minn. Stat. § 645.15 the Clerk's deadline for both certificates was July 6, 2026.
10. On June 23, 2026, the day of filing, the Clerk's office emailed Petitioner confirming receipt of the petitions and stating the number of petition sheets received — 1,287 in total. Exhibit 5.
11. The Clerk did not issue her Petition Ordinance Reports until July 8, 2026 — after the July 6 Charter deadline.
12. For Petition 2, the July 8 report certified **4,049 valid signatures** — 366 more than the 3,683 that twenty percent requires — but recites only the ten-percent standard: the standard § 51 prescribes for a petition signed by at least ten but less than twenty percent of the total ballots

cast, under which the ordinance may be submitted only at the next general municipal election — here, November 2027 — rather than forthwith at a special election. The Clerk advised Petitioner that the report was prepared using a template from a prior petition (the "Right to Repair" petition) and reflects that template rather than any determination that the twenty-percent standard was not met.

13. For Petition 1 (230-Acre), the July 8 report certifies only **3,277 valid signatures**, likewise framed for the next general municipal election.
14. Before submission, the petition proponents, including Petitioner, independently verified the signatures on both petitions against the City of Duluth voter rolls, using the statewide voter registration file obtained from the Office of the Minnesota Secretary of State, and determined that Petition 1 (230-Acre) contained **more** validated signatures than Petition 2 (Lake 9). Approximately ten volunteers performed that verification, working over the course of approximately twenty days; each volunteer recorded the signatures they checked in validation tables of their own, which were collected in the campaign's shared folders and compiled into a combined verification spreadsheet. The combined verification spreadsheet is attached as Exhibit 16; the volunteers' underlying validation tables are preserved and available.
15. The Clerk's July 8 counts were inconsistent with that verification: they showed Petition 1 (3,277) with **fewer** validated signatures than Petition 2 (4,049) — the reverse of the true relationship — which alerted Petitioner that Petition 1 had been undercounted.
16. Later examination revealed the Clerk's process. Upon receiving the original petition sheets, the Clerk's office made a photocopy of the sheets and used the copies as its working set for validation: it checked each signer against the voter registration rolls, marking with a check the signers it found compliant — registered Duluth voters — and crossing out the signers it found non-compliant. The original sheets were not themselves marked or used in the count after

copying. A sheet that was never copied was therefore never reviewed, and its signers were never counted.

17. On examination, the proponents determined that the Clerk had built her count from only a fraction of the sheets the petitioners filed. Volunteers counted **662 original Petition 1 sheets** at the Clerk's office. Sheets contain up to ten petition signers (a few sheets contained up to twelve). The copy set from which the Clerk made her count totals **497 Petition 1 sheets, of which her office accepted 444** and completely rejected 53 (the rejection is addressed below). The certified figure of 3,277 therefore rests on 444 sheets — 218 fewer than the 662 originals. Of that shortfall, **approximately 165 original sheets were never copied or counted at all**, and the remaining 53 copied sheets were rejected on the grounds addressed below.
18. To identify the omitted sheets, the proponents alphabetized both the original sheets and the Clerk's copy set by the last name of the first signer on each sheet and correlated the two sets against one another; the comparison confirmed the approximately 165 of the 662 originals that have no counterpart in the Clerk's set. Those sheets bear the signatures of qualified electors; counted, they bring Petition 1 well above 3,683 — indeed above Petition 2's 4,049, consistent with the proponents' verification. The proponents provided those sheets to the Deputy Clerk for immediate validation on July 14, 2026.
19. Before submission to the Clerk's office, checking each signature against the same registration data the Clerk's office consulted, the proponents validated **595** of the 662 filed Petition 1 sheets and confirmed at least **4,201 valid signatures** of registered Duluth electors on Petition 1. That figure is a **floor, not a ceiling**: owing to the compressed timeline, approximately 67 of the filed sheets were not validated before filing, and additional valid signatures remain on them. Even as a floor, 4,201 exceeds the 3,683 twenty-percent threshold by more than 500.
20. The undercount is corroborated by the Clerk's own figures. The certified 3,277 valid signatures came from 444 accepted sheets — an average of roughly 7.4 valid signatures per sheet.

Credited at a deliberately conservative seven valid signatures per sheet, the approximately 165 sheets that were never copied or counted represent at least **1,155 additional valid signatures**. Added to the Clerk's own certified 3,277, that is at least **4,432 valid signatures** — derived entirely from the City's own records, before any reliance on the proponents' validation — exceeding the 3,683 twenty-percent threshold by more than 700, and restoring the 53 rejected sheets adds several hundred more.

21. Separately, the Clerk rejected the 53 copied sheets solely because they omitted two printed statements — “All information must be filled in by person(s) signing the petition unless disability prevents the person(s) from doing so,” and “All information on this petition is subject to public inspection” — language drawn from Minnesota Rule 8205.1010. She did not reject those sheets on any determination that the electors who signed them are unqualified or that their signatures are not genuine.
22. That rejection is unsupported. **First**, the Clerk reviewed the very form of the rejected sheets — and pronounced it compliant. On the morning of March 24, 2026, the Clerk's office sent Petitioner the text of Minnesota Rule 8205.1010; minutes later, Petitioner submitted the campaign's combined petition form to the office for review, and the office confirmed the form had been forwarded to the Deputy Clerk to review with the City's attorneys. The submitted form — a true and correct copy of which is attached as Exhibit 11 — is the same form as the sheets later rejected in all respects material here: it contains neither of the two printed statements. After Petitioner followed up on April 8, the City Clerk herself confirmed in writing on April 10, 2026 (Exhibit 10): “I looked over the drafts for the purposed (sic) petitions; **both drafts appear to be compliant**. We follow guidance provided by both MN state statute, secretary of state and the Duluth City Charter to certify once delivered to our office.” By the Clerk's own framing, her office's compliance review thus encompassed state statute and Secretary of State guidance — the very sources from which the two printed statements derive — as well as the Charter. That review — conducted with the Rule in hand and with the City's

attorneys — is a written admission that this form satisfied the requirements the City itself deemed applicable; and the campaign, having submitted the form for review and heard no objection, continued circulating it in reliance on the office’s silence and then on its written confirmation. **Second**, the two statements were never a requirement, but at most the Clerk’s own after-the-fact suggestion: her April 13, 2026 email — sent three days after she had pronounced the form compliant — was offered in her own words as her “recommendation,” and it asked only that the public-inspection statement be added. Notably, her own office had sent Petitioner the full text of Rule 8205.1010 — disability statement included — that same March morning; yet with that language in hand, the office reviewed the form, pronounced it compliant, and neither in that review nor in the April 13 recommendation did it ask that the disability statement be added. Indeed, the office’s own escalating language confirms the point: in April, the omitted statement was, in the Clerk’s own word, her “recommendation”; not until June 4, 2026 — months after the form was approved and long after the sheets in question had been circulated — did the office first describe the Rule’s text as what it “will require,” prospective words that treat the requirements as new, in an email that asked nothing of the campaign and in the same breath approved the campaign’s proposed notarization practice. Sheets lawfully circulated on a form the Clerk reviewed and approved cannot be nullified for omitting language she suggested only later — much less language she had in front of her during that review and did not request. **Third**, the City’s own published “Petitions” instruction sheet — which the City Clerk herself sent Petitioner on April 10, 2026 (Exhibit 12) — sets out the required petition format in detail and calls for neither statement. **Fourth**, the Clerk certified the prior “Right to Repair” Section 51 initiative petitions — certifying 3,752 valid signatures of the 5,951 submitted, a validation rate of approximately 63 percent — although their form carried neither statement and provided nothing more than a circulator-name line. Exhibit 13. Petitioner modeled the campaign’s form in part on that City-certified precedent, a copy of which the Right to Repair campaign’s lead organizer, Dyanna Grondahl, provided to him. Having certified another initiative that omitted the very language now invoked — and voted on just last year —

the City cannot make its absence a ground to reject these sheets. **Fifth**, Duluth is a home rule charter city and this is a charter initiative petition governed by Charter §§ 50–51, not a statutory petition; Minnesota Rule 8205.1010 applies by its terms to petitions “required for any election in this state,” and its application to a charter initiative the Charter itself provides for and regulates is doubtful at best. Whether the Rule applies to home-rule-charter petitions at all is an open question: in recent litigation another Minnesota charter city argued that Rule 8205.1010 “does not apply to municipal recall elections,” the district court held that the charter and not the Rule governed the petition’s procedural requirements, and the supreme court expressly declined to reach the question. *Jacobs v. City of Columbia Heights*, No. A23-1780 (Minn. July 24, 2024). Recall petitions are named in the Rule; initiative petitions are not. Section 51 requires only that the Charter’s petition forms be “substantially followed,” and in all events the Charter commits the sufficiency determination to the Clerk; nothing compels converting the genuine signatures of qualified electors into nullities over a missing printed sentence that has no bearing on whether those electors are qualified and in fact signed.

23. The Clerk’s own sheet counts also do not reconcile. On June 23, 2026, the day of filing, the Clerk’s office reported counting **1,287** total petition sheets; on July 9, 2026, it reported **722** sheets for the 230-Acre petition and **721** for the 37.5-Acre petition — **1,443** in all (Exhibit 6), 156 more than the June 23 figure, a difference the City has not explained and further evidence of the confusion that attended the City’s handling and counting of the petitions.
24. On July 8, 2026 — the day the Clerk certified — Petitioner spoke with the Clerk by telephone and noted that, because the proponents knew more Petition 1 signatures had been validated than Petition 2 signatures, the certified count of Petition 1 seemed extremely low. The Clerk said her office had struggled to make sense of that as well.
25. On July 10, 2026, Petitioner delivered a written demand to the Clerk and the Office of the City Attorney requesting a corrected certificate for Petition 2 under the twenty-percent standard. Exhibit 7.

26. Also on Friday, July 10, 2026, volunteers Jean Turbes and Hadrian DeMaioribus attended at the Clerk's office and counted the petition sheets provided to them by the Clerk's staff. For Petition 1, Ms. Turbes counted **662** sheets bearing no verification markings, **444** sheets bearing the Clerk's verification mark-ups, and **53** sheets in a folder the Clerk's staff identified as the rejected sheets. Her declaration is attached as Exhibit 15.
27. On July 12, 2026, at 12:19 a.m., Petitioner notified the Clerk and the City Attorney in writing of the undercount of Petition 1 and the approximately 165 uncounted sheets. Exhibit 8. (That notice referred to the certified figure as 3,227; the Clerk's report in fact certifies 3,277. The point is unchanged.)
28. On July 13, 2026, Petitioner attended at the Clerk's office, asked to examine the sheets himself, and inquired of the Clerk about the grounds on which sheets had been excluded. The Clerk said that the decision to move forward with any of Petitioner's pending requests rested with the City Attorney.
29. On July 14, 2026, Petitioner and a team of five volunteers conducted the public examination of the petitions at the Clerk's office and, by correlating the original sheets against the Clerk's marked-up copy set, isolated the original Petition 1 sheets that had never been counted — those with no paired copy marked up by the Clerk's office in validation. Petitioner then asked the Deputy City Clerk to begin counting those originals at once, and to begin counting the 53 sheets rejected for omitting the two printed statements. The Deputy Clerk refused.
30. Petitioner asked to speak with the City Attorney. The Deputy Clerk relayed that the City Attorney was in a meeting and told Petitioner to relay his demand concerning the count in writing. Petitioner accordingly delivered a written demand to the Clerk and the City Attorney describing the examination just completed — a task that took five people a full six hours — and demanding that the Petition 1 sheets be counted: both the approximately 165 original sheets that had never been reviewed and the 53 sheets rejected for omitting the two printed statements.

Exhibit 9. The demand was not met: the count was not completed, the rejected sheets were not restored, and no corrected certificate issued.

31. The consequence of the City's delay and its abnegation of its duties under the Charter is the disenfranchisement of the more than 4,000 electors who validly signed Petition 1. The proponents validated **4,201 signatures** of registered Duluth voters on Petition 1, each of whom met every requirement for signing a citizen initiative petition; the Clerk's certified count nonetheless denies their petition the special-election submission those signatures secured.
32. The disenfranchisement is not abstract. Mikayla Sevim Haynes is a qualified elector of the City of Duluth — a registered Duluth voter residing at 5810 Juniata Street — who signed Petition 1. Her Petition 1 signature is on a sheet the Clerk's office never copied, reviewed, or counted; her signature on Petition 2, by contrast, was reviewed and counted. The same voter, verified against the same rolls, counts on one petition and is invisible on the other, solely because of where her sheet fell in the Clerk's handling. Her declaration is attached as Exhibit 18. She is one of more than a thousand: cross-referencing the never-counted sheets against the proponents' validation records identifies at least **1,136 verified signers** — registered Duluth voters, identified by name and address — whose Petition 1 signatures were never counted. Exhibit 17.
33. As of the filing of this Petition — notwithstanding the written demands of July 10, 12, and 14, 2026, and the in-person demand of July 14 — neither the Clerk nor the Deputy Clerk has certified either petition at the twenty-percent standard, completed the count of Petition 1, or restored the 53 rejected sheets.
34. On the morning of July 15, 2026 — after receiving Petitioner's letters and draft mandamus papers, and shortly before this filing — the Clerk emailed Petitioner: "We agree that on both petitions, the deadline for the Council to act is July 28. If the Council decides the proposed ordinances should go to the voters, we agree both would go on the ballots for the November 3

election.” Exhibit 19. The email thus concedes that the Council’s twenty-day period is running on both petitions, measured from the July 8, 2026 certificates, and that both measures can be placed on the November 3, 2026 ballot. But it withholds the acts § 51 makes mandatory — no corrected certificate at the twenty-percent standard has issued, the count of Petition 1 remains incomplete, and the 53 rejected sheets remain uncounted — and it frames the voters’ access to the November 3 ballot as a matter for the Council to “decide[.]” Section 51 commits nothing to the Council’s grace: upon a petition signed by twenty percent, the Council must pass the ordinance without alteration, or the ordinance must be submitted to the voters at a special election. Petitioner replied in writing the same morning — before this filing — asking directly whether the office deems both petitions sufficient under the twenty-percent standard, and requesting confirmation, a corrected Petition 2 certificate, and commencement of the Petition 1 count by 10:30 a.m. The exchange is Exhibit 19.

THE § 51 FRAMEWORK AND THE CONTROLLING DEADLINES

35. Under § 51, once the clerk’s certificate of sufficiency is attached, the Council must, within twenty (20) days, "pass said ordinance without alteration," or, within twenty-five (25) days, "proceed to call a special election." These are mandatory duties.
36. Section 51 measures those periods from "attachment of the clerk’s certificate of sufficiency" and, in subpart (b), from "such certification." It does not condition them on a certificate that recites the twenty-percent figure or the words "special election." The two facts that place a petition on the special-election track are objective: a certified count at or above 3,683, and a petition containing the special-election request.
37. The measures can be submitted to the voters this cycle only at the November 3, 2026 election, and the ballot titles and language must be certified to the St. Louis County Auditor by August 11, 2026. Minn. Stat. § 205.16, subd. 4.

38. The stakes of delay are concrete. By Ordinance No. 25-032-O (Enactment No. 10955), adopted December 8, 2025, and the accompanying Development Agreement with the Duluth Economic Development Authority, the City has committed to pursue the rezoning of the former Lester Park Golf Course property — including the approximately 230 acres that are the subject of Petition 1 — and to convey it for development, on a schedule that runs before the next general municipal election in November 2027. Exhibit 14. Relegating the measures to that election would therefore create a concrete risk that the very rezoning Petition 1 submits to the voters will be enacted before the electors can vote; the November 3, 2026 election is their only meaningful opportunity.

COUNT I — DECLARATORY RELIEF: THE JULY 8 CERTIFICATE ALREADY SATISFIES TWENTY PERCENT (PETITION 2 / LAKE 9)

39. Petitioner realleges the foregoing. As of July 8, 2026, both objective facts were present for Petition 2: the Clerk had certified 4,049 valid signatures — above the 3,683 that twenty percent requires — and the petition contains the special-election request. The twenty-percent consequences of § 51 therefore attached upon the July 8 certificate, and the Council’s twenty- and twenty-five-day periods for Petition 2 run from July 8, 2026 — requiring the Council to pass the ordinance on or before July 28, 2026, or call a special election on or before August 3, 2026 (the twenty-fifth day, August 2, falling on a Sunday, Minn. Stat. § 645.15).

40. Petitioner is entitled to a judgment declaring, under Minn. Stat. ch. 555, that the July 8, 2026 certificate satisfies the twenty-percent standard of § 51 for Petition 2 and that the Council’s § 51 periods for Petition 2 run from July 8, 2026.

COUNT II — MANDAMUS IN THE ALTERNATIVE: CORRECTED CERTIFICATE (PETITION 2 / LAKE 9)

41. Petitioner realleges the foregoing. To the extent a certificate reciting the twenty-percent standard is required, the Clerk has a clear, ministerial duty to issue one on her already-certified count of 4,049 valid signatures; the right is clear and no valid excuse exists, so a peremptory

writ should issue. Minn. Stat. §§ 586.01, 586.02, 586.04; *Breza v. City of Minnetrista*, 725 N.W.2d 106, 109–10 (Minn. 2006).

COUNT III — MANDAMUS: COMPLETE THE COUNT AND CERTIFY (PETITION 1 / 230-ACRE)

42. Petitioner realleges the foregoing. The Clerk has a clear, ministerial duty under Charter §§ 50–51 to count the signatures of qualified electors on all validly submitted sheets and to certify the result. By leaving approximately 165 sheets uncounted, the Clerk failed to perform that duty. And the failure is not merely incomplete — it is late and growing later: the Charter required the certificate by July 6, 2026; the Clerk has now been in default for more than a week, through three written demands and repeated in-person demands, while the remaining margin to reach the November 3, 2026 ballot — gone entirely if a certificate is not attached by July 17 — is consumed day by day. The Clerk should be commanded to complete the count forthwith, and in no event later than 4:00 p.m. on July 16, 2026, with Petitioner’s representatives permitted to observe, and to certify Petition 1 sufficient at the twenty-percent standard the moment the validated count reaches 3,683. Minn. Stat. §§ 586.02, 586.04; *Breza*, 725 N.W.2d at 109–10.

COUNT IV — DECLARATORY RELIEF: THE COUNCIL’S § 51 PERIODS FOR BOTH PETITIONS RELATE BACK TO JULY 6, 2026 (EQUITY)

43. Petitioner realleges the foregoing. The Clerk was required to certify both petitions by July 6, 2026 — ten days after the June 23 filing, the tenth day (July 3) falling on a legal holiday and extending to July 6 under Minn. Stat. § 645.15. She issued nothing until July 8, and then certified Petition 2 under the wrong (ten-percent) standard and Petition 1 on an undercount that omitted approximately 165 sheets. But for those failures, correct certificates at the twenty-percent standard for both petitions would have issued on or before July 6, 2026.

44. Relation back follows from the Charter itself, and from settled equitable principle. Section 51’s periods cannot sensibly be measured in a way that permits the officer whose duty it is to attach the certificate to postpone the electors’ rights by neglecting that duty: on the City’s apparent

reading, the later and more erroneous the Clerk's certificate, the more time the City acquires — a construction under which the official bound by the deadline profits from breaking it, and the initiative right is held hostage to the very officer the Charter directs. No charter can bear that reading. See Minn. Stat. § 645.17(1) (enactments are construed on the presumption that no absurd or unreasonable result is intended). Equity states the same conclusion as a maxim: equity regards as done that which ought to have been done, and no party may take advantage of a condition its own wrong or delay has created. To measure the Council's periods from a later corrected certificate would reward the Clerk's lateness and error with additional time — the very delay that threatens the November ballot. The Council's § 51 periods for both petitions should therefore relate back to July 6, 2026, the date the Charter required the certificates, and in no event later than July 8, 2026, the date the certificates in fact issued.

45. Petitioner is entitled to a judgment declaring that the Council's § 51 periods for both petitions run from July 6, 2026 (or, at the latest, July 8, 2026), such that the Council must pass either ordinance without alteration on or before July 27, 2026 (twenty days from July 6, the twentieth day July 26 falling on a Sunday, Minn. Stat. § 645.15) — or, from July 8, July 28, 2026 — or call a special election on or before July 31, 2026 (twenty-five days from July 6) — or, from July 8, August 3, 2026 — in every case well before the August 11, 2026 county-certification deadline.

COUNT V — MANDAMUS: COMPEL COUNCIL ACTION (BOTH PETITIONS)

46. Petitioner realleges the foregoing. With the § 51 periods running from July 6, 2026 (or, at the latest, July 8, 2026), the Council has a clear legal duty to pass either ordinance without alteration by July 27, 2026 (or, from July 8, July 28, 2026), or call a special election by July 31, 2026 (or, from July 8, August 3, 2026), and to cause the ballot titles and language to be certified to the St. Louis County Auditor no later than August 11, 2026, so the ordinances appear on the November 3, 2026 ballot. The Council should be commanded to perform. Minn. Stat. § 586.02; Charter §§ 50–51.

COUNT VI — ALTERNATIVE RELIEF UNDER MINN. STAT. § 204B.44

47. Petitioner realleges the foregoing. The Clerk's undercount and mis-certification, and the resulting threatened omission of the ordinances from the November 3, 2026 ballot, are a "wrongful act, omission, or error" of a municipal clerk and an error in ballot placement correctable under Minn. Stat. § 204B.44, on which the Court "shall immediately set a time for a hearing."

**COUNT VII — MANDAMUS: COUNT THE WRONGLY REJECTED SHEETS
(PETITION 1 / 230-ACRE)**

48. Petitioner realleges the foregoing. The Clerk has a clear, ministerial duty under Charter §§ 50–51 to examine the petition and to count the genuine signatures of qualified electors on all validly submitted sheets. Rejecting 53 sheets for omitting two printed statements that the Charter does not require, that were at most the Clerk's own later recommendation — not in existence when the sheets were circulated, and offered only after the Clerk had reviewed the form and pronounced it compliant — and that the Clerk waived by certifying the Right to Repair petition on a form carrying neither statement, was not a lawful exercise of that examination duty but a failure of it. The Clerk should be commanded to restore and count the 53 rejected sheets and to include their valid signatures in the certified total. Minn. Stat. §§ 586.02, 586.04; *Breza*, 725 N.W.2d at 109–10.

PRAYER FOR RELIEF

WHEREFORE, Petitioner respectfully requests that the Court:

- A. Declare that the Clerk's July 8, 2026 certificate satisfies the twenty-percent standard of Charter § 51 for Petition 2 (Lake 9), and that the Council's § 51 periods for Petition 2 run from July 8, 2026;
- B. In the alternative, issue a peremptory writ of mandamus commanding the Clerk to issue a corrected certificate of sufficiency for Petition 2 at the twenty-percent standard forthwith;
- C. Issue a writ of mandamus commanding the Clerk to complete the count of Petition 1 (230-Acre), including the approximately 165 previously uncounted sheets, forthwith and in no event later than 4:00 p.m. on July 16, 2026, with Petitioner's representatives permitted to

observe the count, and to certify it sufficient at the twenty-percent standard the moment the validated count reaches 3,683 valid signatures;

- D. Issue a writ of mandamus commanding the Clerk to restore and count the 53 signature sheets rejected for omitting the two printed statements drawn from Minnesota Rule 8205.1010, and to include their valid signatures in the certified total;
- E. Declare that, on equitable principles, the Council's § 51 periods for both petitions relate back to July 6, 2026 — the date the Charter required the certificates — and in no event later than July 8, 2026;
- F. Declare and adjudge that, for both petitions, the Council must pass the ordinance without alteration on or before July 27, 2026 (or, measured from July 8, July 28, 2026), or call a special election on or before July 31, 2026 (or, from July 8, August 3, 2026), and cause the ballot titles and language to be certified to the St. Louis County Auditor no later than August 11, 2026 for the November 3, 2026 ballot; and issue a writ of mandamus compelling the Council to do so;
- G. In the alternative and/or in addition, grant expedited relief under Minn. Stat. § 204B.44;
- H. To preserve the status quo and the effectiveness of the relief sought, enjoin Respondents, while this action is pending, from adopting, approving, or effectuating any rezoning, comprehensive-plan or zoning-map amendment, or conveyance of the approximately 230 acres that are the subject of Petition 1; and
- I. Set this matter for an expedited hearing; award Petitioner costs, disbursements, and attorney's fees as allowed by law; and grant such other and further relief as is just.

Dated: July 15, 2026.

/s/ Michael Bernstein

Michael Bernstein (MN Bar No. 0401630)

Director, Our Park, Our Vote

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Petitioner and counsel appearing on his own behalf

VERIFICATION

I have read the foregoing Verified Petition and know its contents.

/s/ Michael Bernstein

Michael Bernstein

I declare under penalty of perjury that everything I have stated in this document is true and correct. Minn. Stat. § 358.116.

Signed on July 15, 2026, in the County of St. Louis, State of Minnesota.
